

BC538187 BC538187

County: los-angeles

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Case Number: BC538187 Hearing Date: August 3, 2026 Dept: 406

ROBERT SCOTT SHTOFMAN,

Plaintiff,

v.

BERNICE CHINYERE IVOKO,

et al.,

Defendants.

Case No.: BC538187

Hearing Date: August 3, 2026

[TENTATIVE]

order RE:

plaintiff's motion to compel further
responses

BACKGROUND

On March 4, 2014, Plaintiff Robert
Scott Shtofman filed this action for unpaid legal fees against Defendants
Bernice Chinyere Ivoko, et al.

On April 27, 2018, the Court issued

a judgment on discovery sanctions, in favor of Plaintiff, in the total amount of \$21,883.71.

On January 11, 2019, the Court issued a judgment in favor of Plaintiff following a jury trial, in the amount of \$271,600.

On January 28, 2019, Defendant Ivoko filed a notice of appeal.

On January 30, 2019, Joseph Ivoko, Michelle Uzowuru, and Michael Uzowuru filed declarations as personal sureties for the undertaking on appeal.

On April 28, 2021, the Court of Appeal affirmed the judgments.

On July 1, 2021, the remittitur was issued, finalizing the appellate decision.

On June 22, 2026, Plaintiff filed the instant motion to compel judgment debtor George Omoko's further responses to post-judgment interrogatories. Omoko filed an opposition on July 22, 2026. Plaintiff filed a reply on July 27, 2026.

LEGAL STANDARD

Upon receiving responses to its discovery requests, the propounding party may move for an order compelling further responses if the responses are incomplete or evasive, or objections are without merit or too general. (Code Civ. Proc., §§ 2030.300(a), 2031.310(a), 2033.290(a).)

DISCUSSION

I.

Timeliness

The deadline for serving a motion to compel further responses is 45 days after receipt of the responses. (Code Civ.

Proc., § 2030.300(c).) The deadline is extended by two court days if responses are served electronically. (Id., § 1010.6(a)(3)(B).) If the deadline falls on a weekend or holiday, the deadline is extended to the next court day. (Id., § 2016.060.) The service deadline is “mandatory and jurisdictional.” (Sexton v. Superior Court (1997) 58 Cal.App.4th 1403, 1410.)

Here, Omoko electronically served his responses to the interrogatories on May 3, 2026. (Chaskin Decl. ¶ 14.) Accounting for the 45-day deadline plus two court days for electronic service results in a date of Friday, June 19, 2026. Because that day was a holiday, the deadline extends to the next court day, which was Monday, June 22, 2026, the day the motion was filed. Therefore, the motion is timely.

II.

Merits

A party “is entitled to demand answers to its interrogatories, as a matter of right . . . [and] the burden of justifying any objection and failure to respond remains at all times with the party resisting an interrogatory.” (Williams v. Sup. Ct. (2017) 3 Cal.5th 531, 541.)

Here, Omoko objected to each SROG and either provided no information or incomplete information. Plaintiff’s motion is accompanied by a detailed separate statement setting forth the substance of each SROG, the relevance of each SROG, Omoko’s responses to each SROG, and the reasons why the responses are defective. Omoko’s opposition fails to address the points made by Plaintiff and merely asserts in conclusory fashion that the responses “are legally valid and were accompanied by substantive responses where appropriate.” (Opp. 9:1-5.) This is insufficient to satisfy Omoko’s burden of justifying his objections and refusal to respond. (See Williams, supra, 3 Cal.5th at p. 541.) Therefore, further responses are warranted.

III.

Sanctions

Sanctions are warranted as Omoko has presented no substantial justification for his failure to provide proper responses. However, Plaintiff’s counsel demands an excessive recovery of \$8,860 (\$800 x 11 hrs. + \$60). (See Chaskin Decl. ¶ 21.) The Court reduces the award

to \$2,310 (\$450 x 5 hrs. + \$60).

CONCLUSION

Plaintiff's motion to compel further responses to post-judgment special interrogatories is GRANTED. Judgment debtor George Omoko shall provide further responses within 20 days of today. The Court sanctions Omoko in the amount of \$2,310, to be paid within 30 days of today.